

26PSCV01197 26PSCV01197

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-09

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Case Number: 26PSCV01197 Hearing Date: July 9, 2026 Dept: H

Joseph v. Investel One LLC, et
al., Case No. 26PSCV01197

ORDER ON DEMURRER AND MOTION TO STRIKE

1. Defendants Investel One LLC and Investel

Certs LLC's Demurrer to Plaintiff's Complaint is SUSTAINED in part, with 20 days' leave to amend (i.e., as to the third and fifth causes of action), and OVERRULED in part (i.e., as to the second and fourth causes of action).

2. Defendants Investel One LLC and Investel

Certs LLC's Motion to Strike Portions of Plaintiff's Complaint is DENIED as moot.

Background

Plaintiff

Tamara Joseph ("Plaintiff") alleges that she sustained bed bug bites during her stay at DoubleTree by Hilton Pomona on or about July 11-18, 2025.

On April 1, 2026, Plaintiff

filed a complaint, asserting causes of action against Investel One LLC, Investel Certs LLC (together, "Defendants"), and Does 1-20 for: (1) Negligence—Premises Liability/Failure to Warn/Negligence Per Se, (2) Nuisance, (3) Intentional Infliction of Emotional Distress, (4) Breach of Contract, and (5) Fraudulent Concealment.

A Case Management

Conference is set for August 25, 2026.

Legal

Standard

A demurrer may be made on the grounds that the pleading, inter alia, does not state facts sufficient to constitute a cause of action and/or is uncertain. (Code Civ. Proc., § 430.10, subds. (e) and (f).)

“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905 [citations omitted].) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) “[A] demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction placed on an instrument pleaded therein, or facts impossible in law, or allegations contrary to facts of which a court may take judicial knowledge.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 [citations omitted].)

Discussion

Defendants

demur, per Code of Civil Procedure section 430.41, to the second through fifth causes of action in Plaintiff’s complaint, on the basis that they each fail to state facts sufficient to constitute causes of action.

Second

Cause of Action (i.e., Nuisance)

A nuisance is statutorily defined as anything “injurious to health” or “indecent, or offensive to the senses, or an obstruction of the free use of property” that interferes “with the comfortable enjoyment of life or property . . .” (Civ. Code, § 3479.) “A public nuisance is one which affect at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal.” (Civ. Code, § 3480.)

Defendants contend

Plaintiff does not state a claim because she has failed to plead facts showing she suffered “ ‘substantial harm’ which was ‘unreasonable’ under the circumstances.” (Dem., 2:4-5.)

Plaintiff alleges that

she stayed at Defendants’ hotel property (Property) from July 11 to July 18, 2025, that at some point during her stay, she noticed a bedbug infestation and “immediately complained to Defendants['] managers, [etc.],” and that management did not take steps to remediate the infestation. (Compl., ¶¶ 28, 29.)

Plaintiff alleges on

information and relief that “Defendants’ gross failure to regularly inspect and maintain the ... Property with reasonable care” caused the infestation in the first place. (Id., ¶ 36.) She also alleges Defendants “are experienced managers of a hotel property” who should have known an infestation would develop absent proper maintenance. (Id., ¶ 38.) Plaintiff alleges a serious infestation, affecting “[t]he entire ... Property, including multiple rooms and common areas, ... for an extended period, both prior to and during Plaintiff’s stay” (Id., ¶ 61.) And she repeatedly refers to the physical, psychological, and financial damage she suffered from the infestation.

Plaintiff’s allegations

are sufficient to describe a substantial and unreasonable harm.

The demurrer to the

second cause of action is overruled.

Third

Cause of Action (i.e., Intentional Infliction of Emotional Distress)

“The elements of a cause of action for intentional infliction of emotional distress are (1) the defendant engages in extreme and outrageous conduct with the intent to cause, or with reckless disregard for the probability of causing, emotional distress; (2) the plaintiff suffers extreme or severe emotional distress; and (3) the defendant’s extreme and outrageous conduct was the actual and proximate cause of the plaintiff’s extreme or severe emotional distress.” (So v. Shin (2013) 212 Cal.App.4th 652,

671 [internal quotations and citations omitted].)

For the third cause of action, Defendants assert substantially the same argument made in connection with the second cause of action: that Plaintiff has not alleged sufficiently outrageous conduct to sustain a claim for intentional infliction of emotional distress. In this respect, Plaintiff relies on her allegation that Defendants, with full knowledge of the conditions at their Property, continued to rent it to hundreds of members of the public.

Plaintiff's allegations are insufficient to state a claim for intentional infliction of emotional distress (IIED). To state a claim for IIED, intentional or outrageous conduct "must be conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware." (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903, *italics added*.) Put differently: the tort depends on "conduct directed primarily at the plaintiff[.]" (Id., ¶ 904.) Plaintiff does not allege Defendants engaged in any intentional conduct directed specifically at her or that occurred in her presence.

The demurrer to the third cause of action is sustained, with 20 days' leave to amend.

Fourth

Cause of Action (i.e., Breach of Contract)

"A cause of action for damages for breach of contract is comprised of the following elements: (1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to plaintiff." (Careau & Co. v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 1371, 1388.)

Defendants argue Plaintiff did not plead facts sufficient to show Defendants breached their contract with her. The Court disagrees. Plaintiff alleges at length that Defendants contracted to provide her with a habitable room and did not do so.

The demurrer to the fourth cause of action is overruled.

Fifth

Cause of Action (i.e., Fraudulent Concealment)

“[T]he elements of an

action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Marketing West, Inc. v. Sanyo Fisher (USA) Corp. (1992) 6 Cal.App.4th 603, 612-613.)

“Fraud

must be pleaded with specificity . . . [t]o withstand a demurrer, the facts constituting every element of the fraud must be alleged with particularity, and the claim cannot be salvaged by references to the general policy favoring the liberal construction of pleadings.” (Goldrich v. Natural Y Surgical Specialties, Inc. (1994) 25 Cal.App.4th 772, 782 [emphasis in original].) “This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73 [internal quotations and citation omitted; emphasis in original].)

Plaintiff

fails to state a claim for fraud with particularity. Her complaint is devoid of specific facts showing Defendants’ knowledge of the infestation and their intent to deceive her. She alleges only in conclusory fashion that “Defendants . . . were aware” of the infestation. (Compl., ¶ 117.) She relies partly on her allegation that the infestation was longstanding and Defendants are experienced hotel managers but kept their Property in dilapidated condition. (Id., ¶¶ 32, 36, 38.) These are not specific facts demonstrating actual knowledge of the infestation. Nor does Plaintiff allege facts showing Defendants actually concealed the infestation from her.

The

demurrer to the fifth cause of action is sustained with leave to amend.

2.

Motion to Strike Portions of FAC

Legal

Standard

Pursuant to Code of Civil

Procedure section 436, "the court may, upon a motion made pursuant to Section

435, or at any time in its discretion, and upon terms it deems proper: (a)

Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity

with the laws of this state, a court rule, or an order of the court." The

grounds for a motion to strike must "appear on the face of the challenged

pleading or from any matter of which the court is required to take judicial

notice." (Code Civ. Proc., § 437.)

Discussion

Defendants move to strike Plaintiff's

allegations related to and prayers for punitive damages.

In light of the ruling on demurrer, the

motion to strike is denied as moot.